

STATE OF NEW YORK

463--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN, TAYLOR, McDONALD -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public officers law and the executive law, in relation to the annual statement of financial disclosure and the posting of financial disclosure filings for candidates for statewide elected office or candidates for a member of the legislature

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (k) of subdivision 2 of section 73-a of the
2 public officers law, as amended by section 7 of part QQ of chapter 56 of
3 the laws of 2022, is amended to read as follows:

4 (k) The commission on ethics and lobbying in government shall post for
5 at least five years beginning for filings made on January first, two
6 thousand thirteen the annual statement of financial disclosure and any
7 amendments filed by each person subject to the reporting requirements of
8 this subdivision who is an elected official, candidate for statewide
9 elected office or candidate for a member of the legislature, on its
10 website for public review within thirty days of its receipt of such
11 statement or within ten days of its receipt of such amendment that
12 reflects any corrections of deficiencies identified by the commission or
13 by the reporting individual after the reporting individual's initial
14 filing. Except upon an individual determination by the commission that
15 certain information may be deleted from a reporting individual's annual
16 statement of financial disclosure, none of the information in the state-
17 ment posted on the commission's website shall be otherwise deleted.

18 § 2. Paragraph (b) of subdivision 13 of section 94 of the executive
19 law, as added by section 2 of part QQ of chapter 56 of the laws of 2022,
20 is amended to read as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD02129-05-5

(b) The commission shall post on its website the following documents:

(i) the information set forth in an annual statement of financial disclosure filed pursuant to section seventy-three-a of the public officers law except information deleted pursuant to paragraph (g) of subdivision nine of this section of statewide elected officials and members of the legislature, and candidates for statewide elected office and members of the legislature;

(ii) notices of delinquency sent under subdivision nine of this section;

(iii) notices of civil assessments imposed under this section which shall include a description of the nature of the alleged wrongdoing, the procedural history of the complaint, the findings and determinations made by the commission, and any sanction imposed;

(iv) the terms of any settlement or compromise of a complaint or referral which includes a fine, penalty or other remedy;

(v) those required to be held or maintained publicly available pursuant to article one-A of the legislative law; and

(vi) reports issued by the commission pursuant to this section.

§ 3. Paragraph (f) of subdivision 1 of section 73-a of the public officers law, as amended by section 5 of part A of chapter 399 of the laws of 2011, is amended to read as follows:

(f) The term "relative" shall mean such individual's spouse, domestic partner, child, stepchild, stepparent, or any person who is a direct descendant of the grandparents of the reporting individual or of the reporting individual's spouse.

§ 4. Paragraph 8 of subdivision 3 of section 73-a of the public officers law, as amended by section 18, subparagraphs (b), (b-2), and (c) as separately amended by section 8 of part QQ of chapter 56 of the laws of 2012, is amended to read as follows:

8. (a) If the reporting individual practices law, is licensed by the department of state as a real estate broker or agent or practices a profession licensed by the department of education, or works as a member or employee of a firm required to register pursuant to section one-e of the legislative law as a lobbyist, describe the services rendered for which compensation was paid including a general description of the principal subject areas of matters undertaken by such individual and principal duties performed. Specifically state whether the reporting individual provides services directly to clients. Additionally, if such an individual practices with a firm or corporation and is a partner or shareholder of the firm or corporation, give a general description of principal subject areas of matters undertaken by such firm or corporation.

~~(b) [APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN:]~~

~~If the reporting individual personally provides services to any person or entity, or works as a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), then identify each client or customer to whom the reporting individual personally provided services, or who was referred to the firm by the reporting individual, and from whom the reporting individual or his or her firm earned fees in excess of \$10,000 during the reporting period for such services rendered in direct connection with:~~

~~(i) A contract in an amount totaling \$50,000 or more from the state or any state agency for services, materials, or property;~~

~~(ii) A grant of \$25,000 or more from the state or any state agency during the reporting period;~~

~~(iii) A grant obtained through a legislative initiative during the reporting period; or~~

~~(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period.~~

~~For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the reporting individual's firm or knowingly solicit or direct to the reporting individual's firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in subparagraphs (i) through (iv) of this paragraph, as the result of such procurement, solicitation or direction of the reporting individual. A reporting individual need not disclose activities performed while lawfully acting pursuant to paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy three of this article.~~

~~The disclosure requirement in this question shall not require disclosure of clients or customers receiving medical or dental services, mental health services, residential real estate brokering services, or insurance brokering services from the reporting individual or his or her firm. The reporting individual need not identify any client to whom he or she or his or her firm provided legal representation with respect to investigation or prosecution by law enforcement authorities, bankruptcy, or domestic relations matters. With respect to clients represented in other matters, where disclosure of a client's identity is likely to cause harm, the reporting individual shall request an exemption from the commission on ethics and lobbying in government pursuant to section ninety four of the executive law, provided, however, that a reporting individual who first enters public office after July first, two thousand twelve, need not report clients or customers with respect to matters for which the reporting individual or his or her firm was retained prior to entering public office.~~

~~Client _____ Nature of Services Provided~~

~~_____

_____~~

~~(b-1) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN]~~ (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):

If the reporting individual receives income from employment reportable in question 8(a) and personally provides services to any person or entity, or works as a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), the reporting individual shall identify each client or customer to whom the reporting individual personally provided services, or who was referred to the firm by the reporting individual, and from whom the reporting individual or ~~his or her~~ **their** firm earned fees in excess of \$10,000 during the reporting period in direct connection with:

(i) A contract in an amount totaling \$10,000 or more from the state or any state agency for services, materials, or property;

(ii) A grant of \$10,000 or more from the state or any state agency during the reporting period;

(iii) A grant obtained through a legislative initiative during the reporting period; or

(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period.

For such services rendered by the reporting individual directly to each such client, describe each matter that was the subject of such representation, the services actually provided and the payment received. For payments received from clients referred to the firm by the reporting individual, if the reporting individual directly received a referral fee or fees for such referral, identify the client and the payment so received.

For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the reporting individual's firm or having knowingly solicited or directed to the reporting individual's firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in clauses (i) through (iv) of this subparagraph, as the result of such procurement, solicitation or direction of the reporting individual. A reporting individual need not disclose activities performed while lawfully acting in ~~his or her~~ **their** capacity as provided in paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article.

Client Matter	Nature of Services Provided	Category of Amount (in Table I)
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~~[(b-2) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN]~~ **(b-1)** (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):

(i) With respect to reporting individuals who receive ten thousand dollars or more from employment or activity reportable under question 8(a), for each client or customer NOT otherwise disclosed or exempted in question 8 or 13, disclose the name of each client or customer known to

1 the reporting individual to whom the reporting individual provided
 2 services: (A) who paid the reporting individual in excess of five thou-
 3 sand dollars for such services; or (B) who had been billed with the
 4 knowledge of the reporting individual in excess of five thousand dollars
 5 by the firm or other entity named in question 8(a) for the reporting
 6 individual's services.

7 Client Services Category of Amount
 8 Actually Provided (in Table I)

9 FOLLOWING IS AN ILLUSTRATIVE, NON-EXCLUSIVE LIST OF EXAMPLES OF
 10 DESCRIPTIONS OF "SERVICES ACTUALLY PROVIDED":

- 11 * REVIEWED DOCUMENTS AND CORRESPONDENCE;
- 12 * REPRESENTED CLIENT (IDENTIFY CLIENT BY NAME) IN LEGAL PROCEEDING;
- 13 * PROVIDED LEGAL ADVICE ON CLIENT MATTER (IDENTIFY CLIENT BY NAME);
- 14 * CONSULTED WITH CLIENT OR CONSULTED WITH LAW PARTNERS/ASSOCIATES/MEMBERS
- 15 OF FIRM ON CLIENT MATTER (IDENTIFY CLIENT BY NAME);
- 16 * PREPARED CERTIFIED FINANCIAL STATEMENT FOR CLIENT (IDENTIFY CLIENT BY
- 17 NAME);
- 18 * REFERRED INDIVIDUAL OR ENTITY (IDENTIFY CLIENT BY NAME) FOR
- 19 REPRESENTATION OR CONSULTATION;
- 20 * COMMERCIAL BROKERING SERVICES (IDENTIFY CUSTOMER BY NAME);
- 21 * PREPARED CERTIFIED ARCHITECTURAL OR ENGINEERING
- 22 RENDERINGS FOR CLIENT (IDENTIFY CUSTOMER BY NAME);
- 23 * COURT APPOINTED GUARDIAN OR EVALUATOR (IDENTIFY COURT NOT CLIENT).
- 24 (ii) With respect to reporting individuals who disclosed in question
- 25 8(a) that the reporting individual did not provide services to a client
- 26 but provided services to a firm or business, identify the category of
- 27 amount received for providing such services and describe the services
- 28 rendered.

29 Services Actually Provided Category of Amount (Table I)

30 A reporting individual need not disclose activities performed while
 31 lawfully acting in [~~his or her~~] their capacity as provided in paragraphs
 32 (c), (d), (e) and (f) of subdivision seven of section seventy-three of
 33 this article.

34 The disclosure requirement in [~~questions (b-1) and (b-2)~~] question (b-1)
 35 shall not require disclosing clients or customers receiving medical,
 36 pharmaceutical or dental services, mental health services, or residen-
 37 tial real estate brokering services from the reporting individual or
 38 [~~his or her~~] their firm or if federal law prohibits or limits disclo-
 39 sure. The reporting individual need not identify any client to whom [~~he~~
 40 ~~or she~~] they or [~~his or her~~] their firm provided legal representation
 41 with respect to investigation or prosecution by law enforcement authori-
 42 ties, bankruptcy, family court, estate planning, or domestic relations
 43 matters, nor shall the reporting individual identify individuals repres-
 44 ented pursuant to an insurance policy but the reporting individual shall
 45 in such circumstances only report the entity that provides compensation
 46 to the reporting individual; with respect to matters in which the
 47 client's name is required by law to be kept confidential (such as

1 matters governed by the family court act) or in matters in which the
2 reporting individual represents or provides services to minors, the
3 client's name may be replaced with initials. To the extent that the
4 reporting individual, or ~~[his or her]~~ their firm, provided legal repre-
5 sentation with respect to an initial public offering, and professional
6 disciplinary rules, federal law or regulations restrict the disclosure
7 of information relating to such work, the reporting individual shall (i)
8 disclose the identity of the client and the services provided relating
9 to the initial public offering to the office of court administration,
10 who will maintain such information confidentially in a locked box; and
11 (ii) include in ~~[his or her]~~ their response to ~~[questions (b-1) and~~
12 ~~(b-2)]~~ question (b-1) that pursuant to this paragraph, a disclosure to
13 the office of court administration has been made. Upon such time that
14 the disclosure of information maintained in the locked box is no longer
15 restricted by professional disciplinary rules, federal law or regu-
16 lation, the reporting individual shall disclose such information in an
17 amended disclosure statement in response to the disclosure requirements
18 in ~~[questions (b-1) and (b-2)]~~ question (b-1). The office of court
19 administration shall develop and maintain a secure portal through which
20 information submitted to it pursuant to this paragraph can be safely and
21 confidentially stored. With respect to clients represented in other
22 matters not otherwise exempt, the reporting individual may request an
23 exemption to publicly disclosing the name of that client from the
24 commission on ethics and lobbying in government pursuant to section
25 ninety-four of the executive law, or from the office of court adminis-
26 tration. In such application, the reporting individual shall state the
27 following: "My client is not currently receiving my services or seeking
28 my services in connection with:

29 (i) A proposed bill or resolution in the senate or assembly during the
30 reporting period;

31 (ii) A contract in an amount totaling \$10,000 or more from the state
32 or any state agency for services, materials, or property;

33 (iii) A grant of \$10,000 or more from the state or any state agency
34 during the reporting period;

35 (iv) A grant obtained through a legislative initiative during the
36 reporting period; or

37 (v) A case, proceeding, application or other matter that is not a
38 ministerial matter before a state agency during the reporting period."

39 In reviewing the request for an exemption, the commission on ethics
40 and lobbying in government or the office of court administration may
41 consult with bar or other professional associations and the legislative
42 ethics commission for individuals subject to its jurisdiction and may
43 consider the rules of professional conduct. In making its determination,
44 the commission on ethics and lobbying in government or the office of
45 court administration shall conduct its own inquiry and shall consider
46 factors including, but not limited to: (i) the nature and the size of
47 the client; (ii) whether the client has any business before the state;
48 and if so, how significant the business is; and whether the client has
49 any particularized interest in pending legislation and if so how signif-
50 icant the interest is; (iii) whether disclosure may reveal trade
51 secrets; (iv) whether disclosure could reasonably result in retaliation
52 against the client; (v) whether disclosure may cause undue harm to the
53 client; (vi) whether disclosure may result in undue harm to the attor-
54 ney-client relationship; and (vii) whether disclosure may result in an
55 unnecessary invasion of privacy to the client.

1 The commission on ethics and lobbying in government or, as the case
2 may be, the office of court administration shall promptly make a final
3 determination in response to such request, which shall include an expla-
4 nation for its determination. The office of court administration shall
5 issue its final determination within three days of receiving the
6 request. Notwithstanding any other provision of law or any professional
7 disciplinary rule to the contrary, the disclosure of the identity of any
8 client or customer in response to this question shall not constitute
9 professional misconduct or a ground for disciplinary action of any kind,
10 or form the basis for any civil or criminal cause of action or proceed-
11 ing. A reporting individual who first enters public office after January
12 first, two thousand sixteen, need not report clients or customers with
13 respect to matters for which the reporting individual or ~~[his or her]~~
14 their firm was retained prior to entering public office.

15 (c) ~~[APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE~~
16 ~~PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR~~
17 ~~NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE~~
18 ~~SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOU-~~
19 ~~SAND FIFTEEN:]~~

20 If the reporting individual receives income of ten thousand dollars or
21 greater from any employment or activity reportable under question 8(a),
22 identify each registered lobbyist who has directly referred to such
23 individual a client who was successfully referred to the reporting indi-
24 vidual's business and from whom the reporting individual or firm
25 received a fee for services in excess of five thousand dollars. Report
26 only those referrals that were made to a reporting individual by direct
27 communication from a person known to such reporting individual to be a
28 registered lobbyist at the time the referral is made. With respect to
29 each such referral, the reporting individual shall identify the client,
30 the registered lobbyist who has made the referral, the category of value
31 of the compensation received and a general description of the type of
32 matter so referred. A reporting individual need not disclose activities
33 performed while lawfully acting pursuant to paragraphs (c), (d), (e) and
34 (f) of subdivision seven of section seventy-three of this article. The
35 disclosure requirements in this question shall not require disclosing
36 clients or customers receiving medical, pharmaceutical or dental
37 services, mental health services, or residential real estate brokering
38 services from the reporting individual or ~~[his or her]~~ their firm or if
39 federal law prohibits or limits disclosure. The reporting individual
40 need not identify any client to whom ~~[he or she]~~ they or ~~[his or her]~~
41 their firm provided legal representation with respect to investigation
42 or prosecution by law enforcement authorities, bankruptcy, family court,
43 estate planning, or domestic relations matters, nor shall the reporting
44 individual identify individuals represented pursuant to an insurance
45 policy but the reporting individual shall in such circumstances only
46 report the entity that provides compensation to the reporting individ-
47 ual; with respect to matters in which the client's name is required by
48 law to be kept confidential (such as matters governed by the family
49 court act) or in matters in which the reporting individual represents or
50 provides services to minors, the client's name may be replaced with
51 initials. To the extent that the reporting individual, or ~~[his or her]~~
52 their firm, provided legal representation with respect to an initial
53 public offering, and federal law or regulations restricts the disclosure
54 of information relating to such work, the reporting individual shall (i)
55 disclose the identity of the client and the services provided relating
56 to the initial public offering to the office of court administration,

1 who will maintain such information confidentially in a locked box; and
2 (ii) include in ~~his or her~~ **their** response a statement that pursuant to
3 this paragraph, a disclosure to the office of court administration has
4 been made. Upon such time that the disclosure of information maintained
5 in the locked box is no longer restricted by federal law or regulation,
6 the reporting individual shall disclose such information in an amended
7 disclosure statement in response to the disclosure requirements of this
8 paragraph. The office of court administration shall develop and main-
9 tain a secure portal through which information submitted to it pursuant
10 to this paragraph can be safely and confidentially stored. With respect
11 to clients represented in other matters not otherwise exempt, the
12 reporting individual may request an exemption to publicly disclosing the
13 name of that client from the commission on ethics and lobbying in
14 government pursuant to section ninety-four of the executive law, or from
15 the office of court administration. In such application, the reporting
16 individual shall state the following: "My client is not currently
17 receiving my services or seeking my services in connection with:

18 (i) A proposed bill or resolution in the senate or assembly during the
19 reporting period;

20 (ii) A contract in an amount totaling \$10,000 or more from the state
21 or any state agency for services, materials, or property;

22 (iii) A grant of \$10,000 or more from the state or any state agency
23 during the reporting period;

24 (iv) A grant obtained through a legislative initiative during the
25 reporting period; or

26 (v) A case, proceeding, application or other matter that is not a
27 ministerial matter before a state agency during the reporting period."

28 In reviewing the request for an exemption, the commission on ethics
29 and lobbying in government or the office of court administration may
30 consult with bar or other professional associations and the legislative
31 ethics commission for individuals subject to its jurisdiction and may
32 consider the rules of professional conduct. In making its determination,
33 the commission on ethics and lobbying in government or the office of
34 court administration shall conduct its own inquiry and shall consider
35 factors including, but not limited to: (i) the nature and the size of
36 the client; (ii) whether the client has any business before the state;
37 and if so, how significant the business is; and whether the client has
38 any particularized interest in pending legislation and if so how signif-
39 icant the interest is; (iii) whether disclosure may reveal trade
40 secrets; (iv) whether disclosure could reasonably result in retaliation
41 against the client; (v) whether disclosure may cause undue harm to the
42 client; (vi) whether disclosure may result in undue harm to the attor-
43 ney-client relationship; and (vii) whether disclosure may result in an
44 unnecessary invasion of privacy to the client.

45 The commission on ethics and lobbying in government or, as the case
46 may be, the office of court administration shall promptly make a final
47 determination in response to such request, which shall include an expla-
48 nation for its determination. The office of court administration shall
49 issue its final determination within three days of receiving the
50 request. Notwithstanding any other provision of law or any professional
51 disciplinary rule to the contrary, the disclosure of the identity of any
52 client or customer in response to this question shall not constitute
53 professional misconduct or a ground for disciplinary action of any kind,
54 or form the basis for any civil or criminal cause of action or proceed-
55 ing. A reporting individual who first enters public office after Decem-
56 ber thirty-first, two thousand fifteen, need not report clients or

1 customers with respect to matters for which the reporting individual or
 2 ~~his or her~~ **their** firm was retained prior to entering public office.

3 Client	Name of Lobbyist	Description of Matter	Category of Amount (in Table 1)
4			
5			
6			
7			
8			
9			

10 (d) List the name, principal address and general description or the
 11 nature of the business activity of any entity in which the reporting
 12 individual or such individual's spouse or domestic partner had an
 13 investment in excess of \$1,000 excluding investments in securities and
 14 interests in real property.

15 § 5. Subparagraph (c) of paragraph 16-a of subdivision 3 of section
 16 73-a of the public officers law, as added by chapter 591 of the laws of
 17 2023, is amended to read as follows:

18 (c) "Distributed ledger or blockchain technology" shall mean a ledger
 19 or database that stores shared state by maintaining it across a multi-
 20 plicity of devices belonging to different entities and securing it
 21 through a combination of cryptographic and consensus protocols, where
 22 the shared state serves to authenticate, record, share, and/or synchro-
 23 nize transactions involving digital assets or virtual currencies.

24	25	26	27	28	29	30	Category of Market Value as of the close of the taxable year last occurring prior to
31 Self/	[Type of						the filing of
32 Spouse or	Digital Asset						this statement
33 Domestic	Name						(In Table II)
34 Partner							
35							
36							
37							
38							
39							

40 § 6. This act shall take effect on the first of January next succeed-
 41 ing the date on which it shall have become a law.